

Satyprakash Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 11 October 2023 · 2023:AHC:195746-DB · Writ - C No. 30681 of 2023 · **Disposed; consider revival of the old connection in accordance with law.**

HEADNOTE

After the licensee had extended a one-time settlement and surcharge waiver, it could not resist revival of a tubewell connection by pleading permanent disconnection under clause 4.39. Without deciding the merits, the Court directed the Executive Officer to proceed strictly in accordance with law and to revive the old connection if that could be done in accordance with law.

FACTUAL SUMMARY

Satyprakash Singh sought restoration of his father Heera Lal's 7.5 HP irrigation tubewell connection No. 781711923125 at Village Amrauli, Tehsil Gabhana, District Aligarh, from Dakshinanchal Vidyut Vitran Nigam Limited. The Nigam had billed Rs.1,46,837. He paid Rs.93,247 on 15 July 2022 under a one-time settlement, and a surcharge rebate of Rs.53,590 was to be adjusted later. The Nigam said the supply had been permanently disconnected on 20 May 2022, before that settlement, and that only a fresh connection could follow. He wanted the old connection continued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39

OTS waiver and revival after permanent disconnection

HOLDING

The licensee, having already extended the one-time settlement and the surcharge waiver, cannot object that the tubewell connection was permanently disconnected. The Executive Officer must proceed strictly in accordance with law and, if the old connection can be revived, may revive it in accordance with law. The Court expressed no opinion on the merits. The licensee had invoked clause 4.39 for the submission that, after permanent disconnection on 20 May 2022, only a fresh connection was available. ¶ 4-6

PRINCIPLE TAGS

reconnection-available-after-permanent-disconnection-clause-4.39

The licensee invoked clause 4.39 to say that, after permanent disconnection on 20 May 2022, the consumer could obtain only a fresh connection. The Court held that, the one-time settlement and surcharge waiver having already been extended, that objection could not be taken, and left revival of the old connection to be done if permissible in accordance with law. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENTLY DISCONNECTED TUBEWELL CONNECTION IS LIABLE TO BE REVIVED ON THE MERITS, AND WHETHER CLAUSE 4.39 CONFINES THE CONSUMER TO A FRESH CONNECTION

The Court expressed no opinion on the merits and directed only that the Executive Officer proceed strictly in accordance with law and revive the old connection if that can be done in accordance with law. ¶ 6